

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Dane Buchanan	Team: Team # 2	CCRB Case #: 201009723	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 07/16/2010 11:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/16/2012	Precinct: 75
Date/Time CV Reported Sun, 07/18/2010 9:57 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 07/18/2010 10:08 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. POM Anthony Lee	28870	938833	075 PCT
3. POM Henry Henriquez	08780	938657	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Kenneth Durkin	01178	925228	075 PCT
2. POM Daniel Sitruk	21263	940742	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Henry Henriquez	Force: PO Henry Henriquez used a taser against § 87(2)(b)	A . Unfounded
B . POM Henry Henriquez	Force: PO Henry Henriquez used physical force against § 87(2)(b)	B . Exonerated
C . POM Anthony Lee	Force: PO Anthony Lee used pepper spray against § 87(2)(b) and § 87(2)(b)	C . Exonerated
D . An officer	Force: An officer struck § 87(2)(b) with a baton.	D . Alleged Victim Uncooperative
E . An officer	Force: An officer used physical force against § 87(2)(b)	E . Alleged Victim Uncooperative
F . POM Henry Henriquez	Force: PO Henry Henriquez used a chokehold against § 87(2)(b)	F . Unfounded
G . POM Henry Henriquez	Force: PO Henry Henriquez used physical force against § 87(2)(b)	G . Unfounded
H . An officer	Force: An officer struck § 87(2)(b) with a baton.	H . Unfounded

Case Summary

§ 87(2)(b) filed this complaint via the CCRB on-line website on July 18, 2010 (encl. 3A – 3B).

On July 16, 2010 at approximately 11:00 a.m., § 87(2)(b) and § 87(2)(b) were arrested at § 87(2)(b) by PO Anthony Lee of the 75th Precinct. The following allegations resulted:

- **Allegation A – Force:** PO Henry Henriquez used a taser against § 87(2)(b) § 87(2)(g). It is therefore recommended that Allegation A be unfounded.
- **Allegation B – Force:** PO Henry Henriquez used physical force against § 87(2)(b) § 87(2)(g). It is therefore recommended that Allegation B be exonerated.
- **Allegation C – Force:** PO Anthony Lee used pepper spray against § 87(2)(b) and § 87(2)(g). It is therefore recommended that Allegation C be exonerated.
- **Allegation D – Force:** An officer struck § 87(2)(b) with a baton § 87(2)(g). It is recommended that Allegation D be closed as victim uncooperative.
- **Allegation E – Force:** An officer used physical force against § 87(2)(b) § 87(2)(g). It is recommended that Allegation E be closed as victim uncooperative.
- **Allegation F – Force:** PO Henry Henriquez used a chokehold against § 87(2)(b) § 87(2)(g). It is recommended that Allegation F be unfounded.
- **Allegation G – Force:** PO Henry Henriquez used physical force against § 87(2)(b) § 87(2)(g). It is therefore recommended that Allegation G be unfounded.
- **Allegation H – Force:** An officer struck § 87(2)(b) with a baton. § 87(2)(g). It is therefore recommended that Allegation H be unfounded.

Results of Investigation

Civilian Statement(s)

Complainant/Victim: § 87(2)(b)

She is a black female who was born on § 87(2)(b). She is § 87(2)(b) and has brown hair and brown eyes. § 87(2)(b)

CCRB Testimony

§ 87(2)(b) provided a written statement when she filed her complaint via the CCRB on-line website on July 18, 2010 (encl. 3A – 3B). She provided a telephone statement on July 22,

2010 (encl. 5A). § 87(2)(b) filed a Notice of Claim that contained a written statement regarding the incident on § 87(2)(b) (encl. 5B – 5C). § 87(2)(g)

On July 16, 2010 at approximately 10:00 a.m., § 87(2)(b) was home with her daughter § 87(2)(b) her son § 87(2)(b) and her god-daughter § 87(2)(b) when § 87(2)(b) and § 87(2)(b) began arguing. When they started grabbing each other § 87(2)(b) called 911 because § 87(2)(b) was getting outrageous and she wanted the police to calm him down. When no officers arrived after a little while § 87(2)(b) called 911 again, as did § 87(2)(b).

Two officers, identified through investigation as PO Anthony Lee and PO Henry Henriquez of the 75th Precinct, arrived at her apartment approximately 30 minutes after the final 911 call was made at about 11:00 a.m.. By this time the argument had ended and everything in the apartment was calm. § 87(2)(b) was only in her underwear when the officers knocked so she wrapped herself in a sheet and answered the door. PO Lee had his pepper-spray out and was shaking it and PO Henriquez had a taser out when she opened the door. The officers asked her if anyone had called 911 and she told them that she just wanted them to talk to her son to calm him down a little bit. PO Henriquez insisted on entering the apartment and tried to put his foot in the door but § 87(2)(b) blocked him and told him that it was not serious and that her son was putting on clothes. § 87(2)(b) exited his room while putting on his shirt and PO Henriquez reached underneath § 87(2)(b)'s arm and shot § 87(2)(b) with a taser while he was about 10 feet away. In the written statement with her Notice of Claim, § 87(2)(b) claimed that PO Henriquez followed § 87(2)(b) into his bedroom where he was tasered.

After § 87(2)(b) was tased he fell on the floor. § 87(2)(b) also indicated that he retaliated and took a swing at PO Henriquez. The officers pushed § 87(2)(b) onto the couch and began to handcuff him. § 87(2)(b) asked why they had done that and PO Lee pepper-sprayed her. § 87(2)(b) got her mother some milk, which § 87(2)(b) poured on herself to try to get rid of the burning. § 87(2)(b) yelled at the police, “What are you doing to my mom” and then she was also pepper-sprayed. In her statement found with the Notice of Claim, § 87(2)(b) never alleged that § 87(2)(b) was pepper-sprayed. § 87(2)(b) was taken outside in handcuffs, followed by § 87(2)(b). § 87(2)(b) did not see how her children were handcuffed because she could not see due to the pepper-spray. § 87(2)(b) indicated that the second floor tenants saw the officers kick § 87(2)(b) down the stairs but she did not witness this. She did not know the names of these tenants at the time of the interview. § 87(2)(b) also indicated in her statement with the Notice of Claim that the officers pulled § 87(2)(b) out of the apartment by her hair.

After her children were brought downstairs, § 87(2)(b) went to her window and saw § 87(2)(b) handcuffed and being held against an RMP by two unidentified officers. § 87(2)(b) was screaming, “I need to cover myself” and her whole left breast was exposed because her shirt had ripped. § 87(2)(b) wrapped herself in a sheet and went downstairs and outside told the police, “This is what you all did to me? I called for help and you all pepper-sprayed and beat me and my daughter up.” PO Henriquez turned to her and said, “Oh, there she goes” and he ran into the building after her with four unidentified officers. § 87(2)(b) ran up the stairs away from the officers and as PO Henriquez grabbed for her the sheet came off and § 87(2)(b) was only in her underwear. PO Henriquez was grabbing for her arms but she continued trying to go upstairs. On the second floor, PO Henriquez pinned her against the wall, grabbed her neck with both hands and choked her, restricting her breathing, for approximately 45 minutes. The other officers were just standing there and watching and laughing.

§ 87(2)(b) saw what was happening and came downstairs with some clothes for § 87(2)(b). PO Henriquez released § 87(2)(b) allowed her get dressed in the stairwell and then handcuffed her and dragged her down the stairs by her hair. He pulled her hair so hard that all her hair in the front of her scalp was gone. She did not make this allegation in her written statement

when she filed this complaint or in her telephone statement on July 22, 2010. § 87(2)(b) was placed directly into an ambulance and was accompanied to § 87(2)(b) by PO Lee. While at the hospital the nurse told PO Lee that they could not treat her with her handcuffs on and he took off the handcuffs. After she was treated the nurse went to look for PO Lee but he had gone. § 87(2)(b) was never taken to the precinct and no charges were ever filed against her regarding the incident. In the statement found with the Notice of Claim, § 87(2)(b) claimed that she was falsely imprisoned and unlawfully detained in police custody for 7 hours. § 87(2)(b) indicated that § 87(2)(b) and § 87(2)(b) did not suffer any injuries from the incident.

When § 87(2)(b) was done providing her formal statement, § 87(2)(b), her civil attorney, added that § 87(2)(b) had taken pictures of the injuries she had suffered from this incident that included extensive bruising to her torso, thighs and arms from the assault and excessive force used during the course of the arrest. The undersigned investigator asked § 87(2)(b) how these injuries were sustained, and she indicated that it was when she was being dragged down the stairs. She also indicated, for the first time in her interview, that she had been hit with an asp in her legs while the officers were attempting to arrest her on the stairs. She did not indicate she was hit with an asp in any of her other telephone or written statements. § 87(2)(b) said, "They were trying to handcuff me and I was refusing them to put the cuffs so all of them came down on me." She then indicated that only one of the officers, who she could not describe, struck her with an asp on her left elbow. In her telephone statement on July 22, 2010, § 87(2)(b) also alleged that the officers hit her and § 87(2)(b) with their walkie-talkies. In her written statement on July 18, 2010, § 87(2)(b) also alleged that an officer hit her § 87(2)(b) son.

Victim: § 87(2)(b)

She is a black female who was born on § 87(2)(b). She is § 87(2)(b) and has dark brown hair and dark brown eyes.

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on January 13, 2011 (encl. 6A – 6E). On July 16, 2010, § 87(2)(b) her mother § 87(2)(b) her brother § 87(2)(b) her § 87(2)(b) brother § 87(2)(b) her § 87(2)(b) brother § 87(2)(b) her § 87(2)(b) sister § 87(2)(b) her god-sister § 87(2)(b) § 87(2)(b) and her cousin § 87(2)(b) were in their apartment at § 87(2)(b) in Brooklyn. At approximately 10:00 a.m., § 87(2)(b) yelled at § 87(2)(b) and started getting madder and acting up so § 87(2)(b) had to tell him to calm down and watch his mouth. § 87(2)(b) and § 87(2)(b) began arguing and then § 87(2)(b) and § 87(2)(b) began arguing. § 87(2)(b) told him to leave the house but § 87(2)(b) refused. § 87(2)(b) pushed § 87(2)(b) into wall and then § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) left to go to a store on Livonia Avenue in the hopes that § 87(2)(b) would calm down.

As they left the house, § 87(2)(b) and § 87(2)(b) called 911 and were told by the operator that officers would not be coming unless there were weapons involved or someone was bleeding. § 87(2)(b) and the children walked around and after they were gone from the apartment for about 20 minutes they went back home. When they got back upstairs § 87(2)(b) started acting up again, telling § 87(2)(b) and § 87(2)(b) that he was not going anywhere and mocking the fact that the police did not show up after they had called them. § 87(2)(b) pushed § 87(2)(b) and § 87(2)(b) called 911 again.

Approximately 5 minutes later at approximately 11:00 a.m., PO Henry Henriquez and PO Anthony Lee arrived at the house. The children had gone downstairs before the officers arrived, leaving the door to the apartment open. The argument was still going on and § 87(2)(b) was walking around the apartment cursing and saying that he was not going anywhere. They heard the officers

coming up the stairs and § 87(2) attempted to close the door on them but PO Henriquez blocked it with his foot. PO Henriquez tried to walk in but § 87(2)(b) put her arm up to block the officers and asked where they were going. The officers told her that they had come in the building and it sounded like something crazy was going on and so they had ran upstairs. As the officers were attempting to still come in, § 87(2)(b) told them that she had called them to calm § 87(2) down and not to go crazy and just arrest him. The officers told her that if they hear a situation going on like that then they just walk in. § 87(2)(b) told them no and that she did not call them for that. While § 87(2)(b) was talking to the officers, § 87(2) was behind her walking back and forth and “talking smack.” He was telling the officers that he was not going anywhere and that they had no warrant and could not come into the apartment. The officers just responded, “Oh, really?” § 87(2) told PO Henriquez that he was not going to do anything with his baton and PO Henriquez reached underneath § 87(2)(b) s arm and lightly tapped § 87(2) with it. § 87(2) continued to tell the officers that they can not come in and could not do anything.

As § 87(2) continued to talk smack, he told PO Henriquez that his badge was not even gold and that it was still silver. PO Henriquez pushed § 87(2)(b) s arm out of the way, ran into the apartment and pushed § 87(2) onto the couch and began punching him with his fist while the baton was in his hand. § 87(2) was defending himself and might have hit PO Henriquez once during the struggle. § 87(2)(b) told PO Henriquez to get off of her brother and jumped on his back and put her arm around his neck and shoulders in an attempt to pull him off of § 87(2). § 87(2)(b) attempted to pry PO Henriquez and § 87(2) apart and was telling PO Henriquez to get off of her son as well. PO Lee pepper-sprayed § 87(2)(b) who let go of PO Henriquez and went to the kitchen to get water. While she did so she heard two more sprays and § 87(2)(b) screaming that she was going blind. The water did not work so § 87(2)(b) grabbed milk and used that to help with the burning. § 87(2)(b) got so hot from the pepper-spray that she took her dress off; at which point she had only underwear on but no bra.

While § 87(2)(b) and § 87(2)(b) were in the kitchen, § 87(2)(b) heard the officers taking § 87(2) out of the apartment and heard several loud thuds following by § 87(2) yelling that the officers had kicked him down the stairs. § 87(2)(b) ran down the steps yelling, “What are you all doing to my son” and then § 87(2)(b) heard § 87(2)(b) fussing and yelling for them to get off of her and her gagging. § 87(2)(b) did not see what happened. § 87(2)(b) ran down the stairs but § 87(2)(b) was already outside of the house. While outside, § 87(2)(b) who was still only in her underwear, was yelling that she could not see and that she had called the officers to help her and that this is what happened. Several officers outside were trying to grab § 87(2)(b) and § 87(2)(b) grabbed § 87(2)(b) and pushed her towards the house and told her to go upstairs because she was naked. § 87(2)(b) went upstairs and several officers followed her.

After pushing § 87(2)(b) upstairs, § 87(2)(b) yelled at the officers and four unidentified officers rushed at her. § 87(2)(b) ran back into the house and began to go up the steps and an officer grabbed her arm and so § 87(2)(b) grabbed the stairwell railing and held on. § 87(2)(b) was asking the officers what she had done and was telling them to get off of her as she continued to hold onto the railing. The officers told her that anytime someone gets pepper-sprayed it is because they did something wrong and since she was pepper-sprayed they had to arrest her. As the officers grabbed at her to get control of her hands, § 87(2)(b) s shirt ripped diagonally across her chest and both of her breasts were exposed. After a while the officers were able to loosen her grip on the railing and she was brought out of the house and taken outside. The officers continued to hold her as she told them to get off of her and let her fix her shirt. They did not let her fix her shirt and they grabbed her legs, grabbed her arms, picked her up and then placed her face-down on the floor. § 87(2)(b) tried to get up using her face, which was unsuccessful, but was finally able to fix her shirt. § 87(2)(b) was handcuffed and then picked up off the ground.

By the time § 87(2)(b) was handcuffed § 87(2)(b) was in a police vehicle and § 87(2)(b) was in an ambulance. § 87(2)(b) and § 87(2)(b) had brought out clothes for § 87(2)(b) to wear. § 87(2)(b) was placed in a marked RMP and was taken to the precinct. § 87(2)(b) was incarcerated for three days and was charged with assault. § 87(2)(b) indicated during the interview that she would be § 87(2)(b)'s criminal attorney as well as civil attorney and that she was going to file a separate Notice of Claim for § 87(2)(b).

Witness: § 87(2)(b)

She is a black female who was born on § 87(2)(b). She is § 87(2)(b) and has brown hair and brown eyes.

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on January 13, 2011 (encl. 7A – 7D). On July 16, 2010 at approximately 10:00 a.m., § 87(2)(b) was at home at § 87(2)(b) in Brooklyn with § 87(2)(b) and the three younger children. § 87(2)(b) began yelling at one of the younger children and was getting loud and § 87(2)(b) and told § 87(2)(b) that it was too early to be so loud and that he should not curse in the house. § 87(2)(b) and § 87(2)(b) began arguing and screaming at each other and the situation escalated and § 87(2)(b) called the police because she could not calm him down on her own and she wanted the police to assist her. § 87(2)(b) and § 87(2)(b) left for a little bit and when they came back the argument did not start up again.

About two – five minutes after § 87(2)(b) and § 87(2)(b) got back to the house, at approximately 11:00 a.m., PO Henry Henriquez and PO Anthony Lee knocked on the door. § 87(2)(b) answered the door and the officers tried to come in but § 87(2)(b) told them that she called them to calm § 87(2)(b) down but that they did not need to come in the house. § 87(2)(b) was in the hallway about 10 feet away from the door and only heard bits and pieces of what was being said. § 87(2)(b) was standing in the doorway and § 87(2)(b) was standing next to her while § 87(2)(b) was behind § 87(2)(b) and § 87(2)(b) was telling § 87(2)(b) not to let the officers in the house and he and the officers were talking back and forth, although § 87(2)(b) was not sure what was said.

At one point § 87(2)(b) began walking away from the door and § 87(2)(b) turned around. When she turned back around PO Henriquez was on top of § 87(2)(b) on the couch and was punching him. § 87(2)(b) then jumped on PO Henriquez and tried to pull him off of § 87(2)(b). § 87(2)(b) went into the back room and did not see what happened after that. She did not see § 87(2)(b) and § 87(2)(b) get pepper-sprayed, did not see how § 87(2)(b) was handcuffed and did not see what happened in the stairwell. She came out of the back room at one point and an unidentified officer hit § 87(2)(b) in his side with a baton multiple times before picking him up by his hair. § 87(2)(b) never left the building because there were a lot of officers and they were telling her to stay inside. Two of the younger children were brought back into the house by an officer who asked her to watch them and took down her name. She took pictures of § 87(2)(b)'s bruises the next day on her cell phone.

Attempts to Contact Civilians

On January 13, 2011, § 87(2)(b)'s and § 87(2)(b)'s civil lawyer, § 87(2)(b) indicated that she wanted to sit in on the interviews with § 87(2)(b) and § 87(2)(b). An interview with § 87(2)(b) was scheduled with § 87(2)(b) for February 1, 2011. § 87(2)(b) [§ 86(1)(3)&(4)] § 87(2)(b), and a message was left for § 87(2)(b) with her secretary to reschedule his interview and to schedule § 87(2)(b).

§ 87(2)(b)'s interview. Another call was made to § 87(2)(b) on January 25, 2011 to reschedule § 87(2)(b)'s interview and schedule an interview with § 87(2)(b). To date, § 87(2)(b) has not responded to these attempts to schedule these interviews.

NYPD Statement(s):

Subject Officer: PO ANTHONY LEE

- *He is a black male who was born on § 87(2)(b). He is § 87(2)(b) and has black hair and brown eyes.*
- *He is assigned to the 75th Precinct. On July 16, 2010, he worked, in uniform, from 7:05 a.m. until 3:40 p.m. He was assigned to the patrol sectors E and F with PO Henriquez in a marked RMP.*

Memo Book

PO Lee's memo book entries (encl. 9A – 9D) regarding the incident are summarized as follows: At 10:45 a.m. he received a job of a dispute at § 87(2)(b). At 11:32 a.m. he had two arrests at that location.

AIDED Report and L.O.D. Witness Statement

While investigating calls of a dispute and an EDP at § 87(2)(b) (encl. 9E – 9J), PO Henriquez was attacked by § 87(2)(b) and was punched in the left side of his face. While PO Henriquez attempted to put § 87(2)(b) in handcuffs, § 87(2)(b) jumped on PO Henriquez, punched him and attempted to prevent him from arresting her brother. PO Henriquez sustained minor abrasions to his face and had pepper-spray transferred to his head and arms from the perpetrators after PO Lee pepper-sprayed them.

Complaint and Arrest Reports

§ 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

CCRB Testimony

PO Anthony Lee was interviewed at the CCRB on February 15, 2011 (encl. 9S – 9U). When PO Lee and PO Henriquez first received the job at § 87(2)(b) it came over as a family dispute. Shortly afterwards, however, the job was changed to an EDP. When they got to the building they saw two young children running downstairs. They were crying and pointed upstairs and told the officers that he was upstairs. PO Lee and PO Henriquez went upstairs and knocked on the door, which was answered by § 87(2)(b). Neither PO Henriquez nor PO Lee had a taser with them and they are not allowed to have a taser. § 87(2)(b) opened the door a little bit and stood in the space between the door and the doorframe, blocking their entry. § 87(2)(b) was pacing, ranting and raving behind, yelling and cursing at the officers and telling them that they could not enter the apartment without a warrant. PO Lee could not remember if § 87(2)(b)

§ 87(2)(b) was fully dressed. § 87(2)(b) was standing next to her mother, § 87(2)(b) but was silent. § 87(2)(b) explained to the officers that she had an argument with her son because he was being disrespectful. She also indicated that she had “snuffed” him and PO Lee noticed marks on § 87(2)(b)s neck. PO Henriquez explained to her that because the job came over as an emotionally disturbed person they needed to enter the apartment to make sure that everything was ok. § 87(2)(b) continued ranting and raving, saying that PO Lee made the marks on his neck and that he was going to sue the city. He continued to tell the officers that they could not enter the apartment and told them that he would “fuck them up” if they entered. § 87(2)(b) never refused to let the officers come into the apartment but kept on telling them to wait and let her explain what happened.

PO Lee explained that with an EDP, the officers need to get the person under control or bring him to a hospital. PO Henriquez stepped into the apartment to handcuff § 87(2)(b) to get him under control and take him to a hospital, which PO Lee indicated is the procedure in such a circumstance. PO Henriquez walked into the apartment with his asp out and told § 87(2)(b) to step back and put his hands behind his back while PO Lee called for additional units. As § 87(2)(b) backed up towards the couch, he grabbed PO Henriquez by his shoulders and pulled him down on top of him onto the couch. § 87(2)(b) punched at PO Henriquez as they fell, hitting him once in the mouth. § 87(2)(b) then jumped on top of PO Henriquez and began punching him in the face. § 87(2)(b) then jumped on top of all of them. PO Lee could not see exactly what was going on because they were all on top of each other and was ordering them to get off and move back. PO Lee did not see PO Henriquez punch § 87(2)(b) or use the asp against him. When the civilians did not respond to his orders to get off PO Henriquez, PO Lee pepper-sprayed § 87(2)(b). Once she was maced § 87(2)(b) ran into the kitchen, took off all of her clothes and began pouring milk on herself. § 87(2)(b) got some pepper-spray on her from when PO Lee pepper-sprayed § 87(2)(b) and § 87(2)(b) ran into the kitchen as well, although PO Lee soon lost sight of her.

PO Lee then assisted PO Henriquez in handcuffing § 87(2)(b) who was still resisting on the couch by flailing his arms and refusing to give his hands. PO Lee and PO Henriquez were eventually able to handcuff § 87(2)(b) on the couch. They tried to take him downstairs and away from the situation but § 87(2)(b) continued to resist by refusing to go down the stairs while yelling that he was going to sue them and make money off of them. PO Lee explained that he used the cuff control tactics that he learned at the Academy to try to get § 87(2)(b) to comply and go down the stairs. This was moderately successful and by this point more officers were coming up the stairs and assisted in getting § 87(2)(b) outside. § 87(2)(b) was never pushed down the stairs.

§ 87(2)(b) was standing by the apartment door as the officers brought § 87(2)(b) down the stairs and PO Lee told the other officers around him that § 87(2)(b) needed to be arrested and several officers ran to do so. PO Lee did not see how § 87(2)(b) was handcuffed. PO Lee brought § 87(2)(b) outside and put him in a vehicle. When PO Lee saw § 87(2)(b) brought out of the building in handcuffs, § 87(2)(b) was still upset and he recalled that she needed to get some extra clothes, although he did not recall exactly why she needed the extra clothes. PO Lee did not recall seeing § 87(2)(b)s shirt ripped or her breasts exposed. § 87(2)(b) was also brought out in handcuffs, although PO Lee did not see how she was handcuffed.

After clothes were gotten for § 87(2)(b) PO Lee accompanied her to the hospital in the ambulance. § 87(2)(b) was crying hysterically and complained that the police had locked her up for no reason. PO Lee told her that she was not under arrest and that she was just going to get checked out to get the mace out of her eyes. PO Lee did not see any injuries on § 87(2)(b) and did not notice if her hair was ripped out. PO Henriquez also was taken to the hospital because he had a busted lip, bruises on his face and had been exposed to the pepper spray.

Subject Officer: PO HENRY HENRIQUEZ

- *He is a Hispanic male who was born on § 87(2)(b). He is § 87(2)(b) and has black hair and brown eyes.*
- *He is assigned to the 75th Precinct. On July 16, 2010, he worked, in uniform, from 7:05 a.m. until 3:40 p.m. He was assigned to patrol sectors E and F with PO Lee in a marked RMP.*

Memo Book

PO Henriquez's memo book entries (encl. 10A – 10C) regarding the incident are summarized as follows: At 10:45 a.m. PO Henriquez received a radio run for a dispute and EDP at § 87(2)(b). At 11:30 a.m. he had 2 under at the location and was en route to the hospital.

L.O.D. Injury Report

PO Henriquez's line of duty injury report (encl. 10D) indicated that while attempting to affect an arrest, § 87(2)(b) resisted by punching him in his face and § 87(2)(b) jumped on his back and punched him as well. PO Lee used pepper-spray on the perpetrators which then was transferred to PO Henriquez's face, head and hands, causing burning to his skin.

CCRB Testimony

PO Henry Henriquez was interviewed at the CCRB on March 3, 2011 (encl. 10E – 10F). PO Henriquez and PO Lee responded to the location and while going up the stairs to the third floor they could hear people yelling and cursing. They went to the door of the apartment, which was obvious from the noise, and knocked on the door. § 87(2)(b) answered the door and her son, § 87(2)(b) was behind her pacing back and forth. § 87(2)(b) had some redness and swelling on her cheeks and § 87(2)(b) had scratches and cuts to the bridge of his nose and face. § 87(2)(b) may not have had a shirt on but § 87(2)(b) was clothed. § 87(2)(b) and § 87(2)(b) were yelling and cursing at each other and § 87(2)(b) also yelled, cursed and threatened the officers, telling them that if they entered the apartment he would fuck them up. PO Henriquez asked § 87(2)(b) what they were arguing about, if they could enter the apartment and if she wanted medical attention. § 87(2)(b) did not want the officers to enter the apartment but she did not say why. As § 87(2)(b) spoke with PO Henriquez, § 87(2)(b) kept pacing and yelling and threatening the officers. PO Henriquez did not want to lose sight of § 87(2)(b) due to safety reasons and when he attempted to go into a different room PO Henriquez pushed past § 87(2)(b) with the intention of grabbing him and restraining him until EMS arrived. As PO Henriquez walked towards § 87(2)(b) punched him in the mouth, cutting his lip. At that point PO Henriquez and § 87(2)(b) began struggling, hitting the wall and eventually landing on the couch as PO Henriquez tried to handcuff him and § 87(2)(b) continued to throw punches. PO Henriquez threw some punches back at § 87(2)(b) although he did not recall how many times he punched him. PO Henriquez also took out his asp and hit § 87(2)(b) with it 3 or 4 times in his body and legs to try to subdue him. Almost immediately upon getting onto the couch, § 87(2)(b) and § 87(2)(b)'s sister, jumped on his back. § 87(2)(b) threw several punches at PO Henriquez, hitting him in the head, while § 87(2)(b) tried to pry PO Henriquez and § 87(2)(b) apart.

PO Lee used pepper-spray against § 87(2)(b) and § 87(2)(b) and grabbed them off of PO Henriquez. § 87(2)(b) continued resisting arrest by turning his body and refusing to give his hands but PO Henriquez was eventually able to handcuff him on the couch. PO Henriquez did not recall if PO Lee assisted in handcuffing § 87(2)(b). PO Henriquez and PO Lee took § 87(2)(b) down the stairs, with

§ 87(2)(b) resisting the whole way by moving his arms and body and refusing to go down the stairs. § 87(2)(b) attempted to spit at the officers at one point as well. As they went down the stairs, officers arriving as backup came up the stairs while § 87(2)(b) was at the top of the steps yelling and cursing at the officers. PO Henriquez told the backup officers that she needed to be arrested as well and several officers went to do so. PO Henriquez assisted in handcuffing § 87(2)(b) and it took several officers to do so because she refused to give them her arms and kept on turning towards the wall. No pepper-spray or asps were used to handcuff her. After she was arrested he placed her in a vehicle. PO Henriquez never saw her clothing ripped or her breasts exposed and he never heard her complain it.

By that point § 87(2)(b) was considered an EDP because she was outside of the building with only her panties on while pouring milk on herself. PO Henriquez indicated that after she was pepper-sprayed she had taken off all of her clothes. PO Henriquez did not assist in handcuffing § 87(2)(b) but indicated that she was handcuffed because she was an EDP and they did not want her to become violent like her children. PO Henriquez did not see how she was handcuffed. § 87(2)(b) was taken to the hospital because she was an EDP and because she was exposed to mace. PO Henriquez went to the hospital to receive treatment for his cut lip, swelling to his face and pepper-spray transferred to his head and arms. PO Henriquez never had a taser and is not allowed to carry one. § 87(2)(b) was never kicked down the stairs and PO Henriquez never choked § 87(2)(b) or dragged her down the stairs by her hair. He never saw § 87(2)(b) hit with an asp.

Witness Officer: SERGEANT KENNETH DURKIN

- *He is a white male who was born on § 87(2)(b). He is § 87(2)(b) and has brown hair and brown eyes.*
- *He is assigned to the 75th Precinct. On July 16, 2010, he worked, in uniform, from 6:55 a.m. until 3:52 p.m. He was assigned as the patrol supervisor and worked with PO Rouse in a marked RMP.*

Memo Book

Sergeant Durkin's memo book entries (encl. 11A – 11C) are summarized as follows: At 11:25 a.m., Sergeant Durkin responded to an 85 called by Sector E at § 87(2)(b). At 11:30 a.m. they had two under and an EDP to going to § 87(2)(b).

CCRB Testimony

Sergeant Kenneth Durkin was interviewed at the CCRB on March 14, 2011 (encl. 11D – 11E). On July 16, 2010 at approximately 11:25 a.m., Sergeant Durkin received a call for additional units made by PO Henriquez and PO Lee. When he and PO Rouse responded there were already several police vehicles at the scene. PO Henriquez and PO Lee had § 87(2)(b) who was yelling and shouting, in handcuffs. Sergeant Durkin did not notice any injuries to § 87(2)(b). PO Henriquez and PO Lee informed Sergeant Durkin that they were called for an EDP job and as they attempted to get § 87(2)(b) under control he fought with them and his sister, § 87(2)(b) and mother, § 87(2)(b) attacked them as well and that pepper-spray was used. § 87(2)(b) was standing in the driveway of the house yelling and screaming that she was going to sue. § 87(2)(b) was standing in the driveway with § 87(2)(b) she was naked, was screaming and was pouring milk on herself. No officers were interacting with § 87(2)(b) or § 87(2)(b) at that point. Either PO Henriquez or PO Lee pointed out § 87(2)(b) as having jumped on top of them and Sergeant Durkin directed the officers to place her under arrest. Sergeant Durkin did not recall who handcuffed her and was not involved in her arrest.

It was determined that § 87(2)(b) was an EDP and Sergeant Durkin requested an ambulance for her to be taken to § 87(2)(b). He did so because she was acting irrationally, namely screaming in the driveway while naked and pouring milk on herself. Sergeant Durkin recalled being in the stairwell with § 87(2)(b) at one point with other officers. He did not recall if she was already placed in handcuffs, was being placed in handcuffs or if she was ever placed in cuffs. She was still yelling and screaming and they were trying to get clothes for her, which a relative retrieved for them. Sergeant Durkin could not recall which officers were dealing with § 87(2)(b). Sergeant Durkin never saw an officer choke her or hit her with an asp. He did not see any officer drag her down the stairs by her hair. He did not see any injuries on her and he never heard her complain of any. He did not recall if she went willingly into the ambulance.

Witness Officer: PO DANIEL SITRUK

- *He is a white male who was born on § 87(2)(b). He is § 87(2)(b) and has brown hair and brown eyes.*
- *He is assigned to the 75th Precinct. On July 16, 2010, he worked, in uniform, from 7:05 a.m. until 3:40 p.m. He was assigned to patrol sectors A and G with PO Giannitelli in a marked RMP.*

Memo Book

PO Sitruk had no memo book entries (encl. 12A – 12C) regarding the incident.

CCRB Testimony

PO Daniel Sitruk was interviewed at the CCRB on March 14, 2011 (encl. 12D – 12E). PO Sitruk did not respond to the incident.

Medical Records

§ 87(2)(a) PHL § 18(6)

NYPD Document(s)

SPRINT § 87(2)(b) and § 87(2)(b)

In the first 911 call (encl. 14a), § 87(2)(b) indicated that her son § 87(2)(b) was fighting people at § 87(2)(b) in Brooklyn, § 87(2)(b). There was a lot of yelling and arguing in the background between § 87(2)(b) and § 87(2)(b). § 87(2)(b) was

uncooperative with the 911 operator and yelled and cursed at the operator and screamed, "Miss will you send a fucking car!" § 87(2)(b) answered yes to the question of whether there were any weapons but did not confirm what weapons were involved. § 87(2)(b) is heard yelling in the background, "you wana fight everybody, you wana push and shove." You can also hear § 87(2)(b) yelling, "What the fuck you gonna do" and "I didn't do nothing nigger." § 87(2)(b) stated, "I hate these fucking police man, I'm asking you to send me assistance and you're on the damned phone..." before the arguing continued and the call was disconnected.

In the second 911 call, the caller's telephone was not working properly and the voice was barely audible. The caller, who sounds like a young child, indicated that § 87(2)(b) keeps fighting with his/her mother before the call disconnected.

In the third 911 call, § 87(2)(b) indicated that they had called for an emergency at their house previously but no officers had arrived yet. She indicated that § 87(2)(b) was going crazy and had tried to hit her in the face. She told the dispatcher that she wanted § 87(2)(b) out of the house, that he was refusing to leave and that they needed the police to get him out of the house.

In the fourth 911 call, § 87(2)(b) indicated that she had called the police a long time ago and wanted to know where they were. She indicated § 87(2)(b) was going crazy in the house and that she wanted the police to get him out of the house. He was pushing her little brothers and sisters and was going crazy and was getting § 87(2)(b) upset. There were no weapons but § 87(2)(b) indicated that § 87(2)(b) had his fist and that he is dangerous. She also said that no one was hurt yet but that someone will get hurt if officers do not come soon enough.

In the fifth 911 call, Brooklyn dispatcher § 87(2)(b) called 911 and indicated that a unit was needed to respond to § 87(2)(b) in Brooklyn for a domestic dispute. He indicated that it was called in by a fire unit but he could not provide any other information.

In the radio communications for the SPRINT, the central dispatcher assigned 75th PCT sector E to a dispute at § 87(2)(b). Approximately 11 minutes later, the central dispatcher notified sector E that the dispute had been changed to an EDP and indicated that an EDP at the location was acting out. Approximately 10 minutes later sector E indicated that they had arrived at the location and approximately 2 minutes later sector E radioed central dispatch with a message that was unclear due to excessive noise in the background. The dispatcher then called for units to assist sector E in regards to the EDP. The 75th PCT sergeant indicated that he would respond and about 1 minute later sector A of the 75th PCT also indicated that they would respond. The central dispatcher made several attempts to contact sector E but there was no response and sector A was told to advise once they arrived. Approximately 1 minute later sector E indicated that everything was under control and that no further units were needed. The central dispatcher reiterated the call for no further units and indicated that the time was 11:11 a.m. Approximately 22 minutes later 75th PCT car S9234 indicated that 1 male was out of the RMP. The 75th PCT sergeant also indicated that the final for the job was 2 under and 1 civilian to the hospital. The central dispatcher provided the under time as 11:33 a.m. and the sergeant indicated that 1 MOS was going to § 87(2)(b) for minor injuries § 87(2)(b).

Although § 87(2)(b) and § 87(2)(b) claimed that the dispatcher told them that they would not come unless there was a weapon or deaths, no such statement was ever made in the recordings.

Command Log

The command log (encl. 15A – 15B) for the 75th Precinct indicated that § 87(2)(b) was brought to the precinct at 11:30 a.m. She was arrested for assault and her condition was

apparently normal. § 87(2)(b) arrived at the precinct at 11:30 a.m. It was noted that that force was used to arrest both of them and that § 87(2)(b) had a cut above his right eye.

Summons/Arrest for Incident and Disposition

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]

Status of Civil Proceedings

- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b) (encl. 17A – 17E), claiming mental anguish, deprivation of liberty and privacy, humiliation, shame, damage to reputation, emotional distress, nervousness, anxiety, fear, sleeplessness, nightmares and other psychological and physical injuries, some of which may be permanent. § 87(2)(b) is seeking 5 million dollars as redress.
- As of February 1, 2011, § 87(2)(b) has not filed a Notice of Claim with the City of New York regarding the incident (encl. 21M).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) (encl. 2A – 2C).

Subject Officer(s) CCRB History

- PO Lee has been a member of the service for five years and there are no substantiated CCRB allegations against him (encl. 1A).
- PO Henriquez has been a member of the service for 5 years and there are no substantiated CCRB allegations against him (encl. 1B).

Conclusion

Identification of Subject Officer(s)

- PO Lee acknowledged interacting with § 87(2)(b) and § 87(2)(b)
- PO Henriquez acknowledged interacting with § 87(2)(b) and § 87(2)(b)

Investigative Findings and Recommendations

Allegation A – Force: PO Henry Henriquez used a taser against § 87(2)(b)

§ 87(2)(b) alleged that PO Henriquez tasered § 87(2)(b). § 87(2)(b) denied that § 87(2)(b) was tasered and § 87(2)(b) failed to corroborate this allegation. PO Henriquez and PO Lee denied that a taser was used and indicated that since they are officers and not sergeants they are not even allowed to carry a taser. It is therefore recommended that **Allegation A be unfounded.**

Allegation B – Force: PO Henry Henriquez used physical force against § 87(2)(b)

§ 87(2)(b) alleged that the struggle to arrest § 87(2)(b) began when PO Henriquez took offense to something § 87(2)(b) had said and punched him. § 87(2)(b) did not corroborate § 87(2)(b)'s story, indicating that the fight began when § 87(2)(b) was tased. § 87(2)(g)

§ 87(2)(b) admitted that § 87(2)(b) was being confrontational with the officers and “talking smack.” Both § 87(2)(b) and § 87(2)(b) admitted that § 87(2)(b) attempted to punch PO Henriquez during the struggle.

PO Henriquez and PO Lee indicated that once PO Henriquez went to place § 87(2)(b) in handcuffs he punched PO Henriquez in the face. As § 87(2)(b) continued to punch at him, PO Henriquez admitted to punching and hitting § 87(2)(b) with an asp several times to subdue him. Both officers denied that PO Henriquez started the fight by punching § 87(2)(b). § 87(2)(g)

It is therefore recommended that **Allegation B be exonerated.**

Allegation C – Force: PO Anthony Lee used pepper spray against § 87(2)(b) and § 87(2)(b)

PO Lee admitted to using pepper-spray against § 87(2)(b) and § 87(2)(b) and indicated that he did so because they had gotten involved in the struggle between PO Henriquez and § 87(2)(b). PO Lee indicated that § 87(2)(b) jumped on PO Henriquez's back and began punching him and that § 87(2)(b) was trying to pry PO Henriquez and § 87(2)(b) apart. Although § 87(2)(b) denied punching PO Henriquez, she admitted that she had jumped on his back to try to get him off of § 87(2)(b) and that her mother was also trying to pry them apart. § 87(2)(g)

it is recommended that **Allegation C be exonerated.**

Allegation D – Force: An officer struck § 87(2)(b) with a baton.

Allegation E – Force: An officer used physical force against § 87(2)(b)

§ 87(2)(b) alleged that after § 87(2)(b) was handcuffed, she saw an unidentified officer punching and hitting him with an asp. § 87(2)(b) and § 87(2)(b) claimed that they had heard from other civilians that § 87(2)(b) was kicked down the stairs by the officers. However, § 87(2)(b) did not provide a statement regarding the incident and it is therefore recommended that **Allegations D and E be closed as victim uncooperative.**

Allegation F – Force: PO Henry Henriquez used a chokehold against § 87(2)(b)

Allegation G – Force: PO Henry Henriquez used physical force against § 87(2)(b)

Allegation H – Force: An officer struck § 87(2)(b) with a baton.

§ 87(2)(b) alleged that after she went outside, PO Henriquez chased her up the stairs where he choked her, restricting her breathing for 45 minutes. She also alleged that during this time an officer hit her with an asp and that after she was handcuffed she was dragged down the stairs by her hair. She also claimed that these acts of excessive force caused substantial bruising all over her body and that part of her hair was ripped out of her scalp. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(a) PHL § 18(6)

PO Henriquez and the other officers interviewed denied that § 87(2)(b) was ever choked, hit with an asp or pulled down the stairs by her hair. PO Henriquez, PO Lee and Sergeant Durkin indicated that § 87(2)(b) was irrational, was screaming, had undressed herself and was considered an EDP by the end of the incident. § 87(2)(b) corroborated the officers' account, indicating that her mother stripped her clothes on her own and needed to be pushed back into the house. § 87(2)(b) also admitted to resisting the officers when they tried to handcuff her and she herself indicated that her resistance to arrest is what caused force to be used against her. Additionally, PO Henriquez and PO Lee noted that § 87(2)(b) and § 87(2)(b) had injuries when they first arrived at the house. § 87(2)(g)

§ 87(2)(b)

it is recommended that **Allegations F, G and H be unfounded.**

Team: _____

:

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date